

SENATE No. 1352

The Commonwealth of Massachusetts

PRESENTED BY:

Jason M. Lewis

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act amending the Massachusetts paid family medical leave law definitions of a covered business entity and a covered contract worker.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Jason M. Lewis</i>	<i>Fifth Middlesex</i>	
<i>Patrick M. O'Connor</i>	<i>First Plymouth and Norfolk</i>	<i>5/16/2025</i>
<i>William J. Driscoll, Jr.</i>	<i>Norfolk, Plymouth and Bristol</i>	<i>8/18/2025</i>

SENATE No. 1352

By Mr. Lewis, a petition (accompanied by bill, Senate, No. 1352) of Jason M. Lewis for legislation to amend the Massachusetts Paid Family Medical Leave law definitions of a covered business entity and a covered contract worker. Labor and Workforce Development.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1198 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act amending the Massachusetts paid family medical leave law definitions of a covered business entity and a covered contract worker.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 1 of chapter 175M of the General Laws, as appearing in the 2022 Official
2 Edition, is hereby amended by striking out, in lines 24 through 27, the definition of “Covered
3 business entity” and inserting in place thereof the following definition:-

4 “Covered business entity”, a business or trade whose workforce is comprised of 50 per
5 cent or more individuals that it contracts with or receives services from who are not employees
6 under the test set forth in section 2 of chapter 151A of the General Laws.

7 And by striking out, in lines 28 through 32, the definition of “Covered contract worker”
8 and inserting in place thereof the following definition:-

9 “Covered contract worker”, an individual who is not an employee under the test set forth
10 in section 2 of chapter 151A of the General Laws and for whom an employer or covered business
11 entity is required to remit contributions to the Family and Employment Security Trust Fund
12 pursuant to section 6.